

CIC AND SIC

RIGHT TO KNOW, RTI -- PIO-FAA-COMMISSION CHAIN, TRANSFERS AND -- CIC AND SIC COMPOSITION -- 2019 AMENDMENT, CURRENT RULES -- SECTIONS 18-20: COMPLAINT, APPEAL -- EXEMPTIONS, PUBLIC INTEREST, SEVERABILITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept appropriate structure, the grey E card is optional enrichment only and never repairs missing core content.

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00

RIGHT TO KNOW, RTI ACT IDENTITY AND THE INFORMATION-PUBLIC-AUTHORITY VOCABULARY

RIGHT TO KNOW, RTI ACT IDENTITY AND THE INFORMATION-PUBLIC-AUTHORITY

CONSTITUTIONAL ROOT

ARTICLE 19(1)(A) RIGHT TO RECEIVE INFORMATION FOR DEMOCRATIC PARTICIPATION

RTI ACT, 2005 STATUTORY REQUEST, PROACTIVE-DISCLOSURE, APPEAL, COMPLAINT AND

INFORMATION MATERIAL IN ANY FORM HELD BY OR UNDER

PUBLIC AUTHORITY

PARLIAMENTARY OR STATE LAW

GOVERNMENT NOTIFICATION/ORDER SUBSTANTIALLY FINANCED BODIES AND NGOS UNDER SECTION

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CIC/SIC jurisdiction, procedure and remedies remain bounded by the Act and are subject to constitutional judicial review.

01

STAGE 01

PIO-FAA-COMMISSION CHAIN, TRANSFERS AND STATUTORY TIMELINES

PIO-FAA-COMMISSION CHAIN, TRANSFERS AND STATUTORY TIMELINES

PROACTIVE DISCLOSURE

SECTION 4 RECORDS AND KEY INFORMATION DISCLOSED BY DEFAULT

FEWER INDIVIDUAL REQUESTS.

PIO OR SPIO RECEIVES

APIO FORWARDING ADDS FIVE DAYS WHERE APPLICABLE.

NO REASONS REQUIRED; ONLY CONTACT DETAILS NEEDED FOR COMMUNICATION.

SECTION 6(3) TO THE CONCERNED PUBLIC AUTHORITY AS SOON

PROACTIVE DISCLOSURE: SECTION 4 records and key information disclosed by default — fewer individual requests.

PIO or SPIO receives

APIO forwarding adds five days where applicable.

No reasons required; only contact details needed for communication.

TRANSFER: SECTION 6(3) to the concerned public authority as soon as practicable, within five days.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 6(3) requires prompt transfer to the responsible public authority, preserving access without forcing applicants to identify the correct administrative compartment.

02

STAGE 02

CIC AND SIC COMPOSITION, APPOINTMENT COMMITTEES, ELIGIBILITY AND JURISDICTION

CIC AND SIC COMPOSITION, APPOINTMENT COMMITTEES, ELIGIBILITY AND JURISDICTION

CHIEF INFORMATION COMMISSIONER + UP TO TEN INFORMATION COMMISSIONERS.

PRESIDENT APPOINTS ON COMMITTEE ADVICE

PRIME MINISTER + LOK SABHA OPPOSITION LEADER/SUBSTITUTE + UNION

STATE CHIEF INFORMATION COMMISSIONER + UP TO TEN STATE

GOVERNOR APPOINTS ON COMMITTEE ADVICE

CHIEF MINISTER + ASSEMBLY OPPOSITION LEADER/SUBSTITUTE + STATE CABINET

ELIGIBILITY EMINENCE IN PUBLIC LIFE WITH KNOWLEDGE/EXPERIENCE IN LISTED

Chief Information Commissioner + up to ten Information Commissioners.

President appoints on committee advice

Prime Minister + Lok Sabha Opposition Leader/substitute + Union Cabinet Minister.

State Chief Information Commissioner + up to ten State Information Commissioners.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: General superintendence, direction and management vest in the Chief Information Commissioner, assisted by the Information Commissioners, and the Commission acts autonomously without directions from another authority under the Act.

03

STAGE 03

2019 AMENDMENT, CURRENT RULES, TENURE AND PROTECTED REMOVAL

2019 AMENDMENT, CURRENT RULES, TENURE AND PROTECTED REMOVAL

2019 AMENDMENT REMOVED ACT-FIXED FIVE-YEAR TERM AND ELECTION-COMMISSION-LINKED CONDITIONS

CENTRAL GOVERNMENT PRESCRIBES TERM, PAY AND SERVICE CONDITIONS BY

2019 RULES ORDINARY TERM

THREE YEARS

AGE CEILING

FIXED CURRENT PAY VARIES BY OFFICE UNDER THE RULES.

REAPPOINTMENT SAME OFFICE

2019 AMENDMENT removed Act-fixed five-year term and Election-Commission-linked conditions

Central Government prescribes term, pay and service conditions by rules.

2019 RULES ordinary term: three years

age ceiling: 65.

fixed current pay varies by office under the Rules.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The independence debate is not merely “three versus five.” The deeper change is the movement of a safeguard from parliamentary text to executive rule-making by the government whose records the Commissions review.

04

STAGE 04

SECTIONS 18-20: COMPLAINT, APPEAL, INQUIRY, ORDERS, COMPENSATION AND PENALTY

SECTIONS 18-20

COMPLAINT, APPEAL, INQUIRY, ORDERS, COMPENSATION AND PENALTY

SECTION 18 COMPLAINT INABILITY TO FILE

NO REPLY

UNREASONABLE FEE INCOMPLETE, MISLEADING OR FALSE INFORMATION

INQUIRY ON REASONABLE GROUNDS.

INQUIRY POWERS CIVIL-COURT POWERS + DIRECT INSPECTION OF COVERED

NO RECORD MAY BE WITHHELD FROM COMMISSION ON A

SECTION 18 COMPLAINT inability to file

no reply

unreasonable fee incomplete, misleading or false information — inquiry on reasonable grounds.

INQUIRY POWERS civil-court powers + direct inspection of covered records

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 18 gives Information Commissions civil-court evidence powers during inquiry, but those powers do not convert complaint jurisdiction into appellate authority.

05

STAGE 05

EXEMPTIONS, PUBLIC INTEREST, SEVERABILITY, THIRD PARTIES AND SECURITY BODIES

EXEMPTIONS, PUBLIC INTEREST, SEVERABILITY, THIRD PARTIES AND SECURITY BODIES

SECTION 8 SPECIFIED PROTECTED INTERESTS; CURRENT SECTION 8(1)(J) COVERS

SECTION 8(2) GENERAL PUBLIC-INTEREST OVERRIDE REMAINS.

SECTION 9 COPYRIGHT-BASED REFUSAL WHERE ACCESS WOULD INFRINGE COPYRIGHT

SECTION 10 SEVER EXEMPT PORTION

DISCLOSE REASONABLY SEPARABLE REMAINDER WITH REASONS.

SECTION 11 THIRD-PARTY CONSULTATION PROCEDURE, NOT AN INDEPENDENT EXEMPTION

SECTION 24 LISTED INTELLIGENCE/SECURITY ORGANISATIONS EXCLUDED, EXCEPT CORRUPTION ALLEGATIONS

SECTION 8 specified protected interests; current section 8(1)(j) covers personal information.

Section 8(2) general public-interest override remains.

SECTION 9 copyright-based refusal where access would infringe copyright of a person other than State.

SECTION 10 sever exempt portion — disclose reasonably separable remainder with reasons.

SECTION 11 third-party consultation procedure, not an independent exemption.

CONSTITUTIONAL BASIS / ARTICLE

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FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 8(3) creates a twenty-year disclosure rule subject to clauses (a), (c) and (i), with date disputes decided by the Central Government subject to usual appeals.

06

STAGE 06

SEVEN CONTROLLING DECISIONS AND THE NO-RECORD-CREATION BOUNDARY

SEVEN CONTROLLING DECISIONS AND THE NO-RECORD-CREATION BOUNDARY

STATE OF U.P. V. RAJ NARAIN (1975) DEMOCRATIC RIGHT

S.P. GUPTA V. UNION OF INDIA (1981) OPEN GOVERNMENT

CBSE V. ADITYA BANDOPADHYAY (2011) EVALUATED ANSWER BOOKS ARE

CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) COMPLAINT

RBI V. JAYANTILAL N. MISTRY (2015) NO GENERIC FIDUCIARY

SUBHASH CHANDRA AGARWAL (2019)

CJI OFFICE IS A PUBLIC AUTHORITY; PRIVACY AND TRANSPARENCY

State of U.P. v. Raj Narain (1975) democratic right to know public acts.

S.P. Gupta v. Union of India (1981) open government and disclosure as democratic norm.

CBSE v. Aditya Bandopadhyay (2011) evaluated answer books are information; authority need not create new

Chief Information Commissioner v. State of Manipur (2011) complaint is not an automatic substitute for

CONSTITUTIONAL BASIS / ARTICLE

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FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Chief Information Commissioner v. State of Manipur (2011), section 18's complaint jurisdiction does not itself become the section 19 appellate disclosure route.

07

STAGE 07

INSTITUTIONAL COMPARISON, BACKLOG, DIGITAL RTI AND REFORM ARCHITECTURE

INSTITUTIONAL COMPARISON, BACKLOG, DIGITAL RTI AND REFORM ARCHITECTURE

SIC STATUTORY RTI COMPLAINTS AND SECOND APPEALS; DISCLOSURE, COMPLIANCE

COURT CONSTITUTIONAL/STATUTORY JUDICIAL REVIEW; NOT A ROUTINE RTI FIRST-INSTANCE

FAA DEPARTMENTAL ACCESS DECISION AND INTERNAL APPEAL; NEITHER REPLACES

IMPLEMENTATION DEFICITS VACANCIES + BACKLOG + WEAK SECTION 4

REFORM ADVANCE VACANCY CALENDAR

INDEPENDENT STAFF AND BUDGET

INTEROPERABLE E-FILE WITH OFFLINE ACCESS

CONSTITUTIONAL BASIS / ARTICLE

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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Information Commissions issue binding RTI appellate decisions and personal PIO penalties, unlike Human Rights Commissions whose ordinary outputs are principally recommendations and reports.

08

STAGE 08

CURRENT-LAW CAVEATS, PYQ ROUTE, TRAPS AND TRANSPARENCY SYNTHESIS

CURRENT-LAW CAVEATS, PYQ ROUTE, TRAPS AND TRANSPARENCY SYNTHESIS

DATED CONTROL

24 AUGUST 2026

DPDP SECTION 44(3) SUBSTITUTED SECTION 8(1)(J) FROM 13 NOVEMBER

SECTION 8(2) REMAINS; NO UNVERIFIED STAY OR FINAL CONSTITUTIONAL

PYQ ROUTE

2020 GS-II

2019 AMENDMENT AND AUTONOMY OF INFORMATION COMMISSIONS.

DATED CONTROL: 24 AUGUST 2026

DPDP section 44(3) substituted section 8(1)(j) from 13 November 2025.

Section 8(2) remains; no unverified stay or final constitutional outcome is asserted.

PYQ ROUTE

2020 GS-II — 2019 amendment and autonomy of information Commissions.

CONSTITUTIONAL BASIS / ARTICLE

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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PIOs and APIOs structure access to records, including assistance for oral requests, so inability to write cannot defeat the statutory right.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PART A — CENTRAL INFORMATION COMMISSION (CIC)

PART B — STATE INFORMATION COMMISSION (SIC)

3 YEARS UNDER THE RTI RULES, 2019, SUBJECT

REMOVED BY THE PRESIDENT ; FOR PROVED MISBEHAVIOUR/INCAPACITY

CIC/SIC ARE CONSTITUTIONAL BODIES

STATUTORY (RTI ACT 2005).

CIC'S TERM REMAINS 5 YEARS

OPTIONAL DOCTRINE / CASE

ADVANCED LIMIT

COMPARATIVE NUANCE

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.